

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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LEROY ATKINS,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, MARIO GIORDANO, CHANCE
DEESPINA, and KEVIN SUAREZ,

Defendants.

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Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Kings
County as the place of trial.

The basis of venue is:
Place of Occurrence
County of Kings

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 21, 2014



EITAN ALEXANDER OGEN
OGEN & SEDAGHATI, P.C.
Attorney for Plaintiff
202 East 35th Street
New York, New York 10016
(212) 344-3440
Our File No. 13-0058

TO:

CITY OF NEW YORK
100 Church Street
New York, NY 10007

MARIO GIORDANO
103-53 101st Street
Ozone Park, NY 11417

NYC PD
c/o CITY OF NEW YORK
100 Church Street
New York, NY 10007

CHANCE DEESPINA
6 Hamilton Street
Staten Island, NY 10304

KEVIN SUAREZ
1412 31st Road, #2
Astoria, NY 11106

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VERIFIED COMPLAINT

Plaintiff, by his attorneys, **OGEN & SEDAGHATI, P.C.**, complaining of the Defendants,
respectfully alleges, upon information and belief:

1. At all times herein mentioned, Plaintiff **Leroy Atkins** was, and still is, a resident of the State of New York.
2. At all times herein mentioned, Defendant **CITY OF NEW YORK** was and still is a municipal corporation.
3. At all times herein mentioned, Defendant **Mario Giordano** was, and still is, a resident of the State of New York.
4. That on November 18, 2013, and within the time prescribed by law, a proper Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly submitted on the Plaintiffs' behalf on the Comptroller of the City of New York and that, thereafter, said Comptroller for **THE CITY OF NEW YORK** refused or neglected for more than thirty (30) days, and up to the

commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.

5. That pursuant to General Municipal Law Section 50(h), a hearing was held at the Office of the Comptroller or at the office of a designated agent.

6. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was the owner of a 2009 Ford motor vehicle bearing New York State license number FPB5933.

7. At all times herein mentioned, Defendant **Mario Giordano** operated the aforementioned motor vehicle.

8. At all times herein mentioned, Defendant **Mario Giordano** operated the motor vehicle with the permission of Defendant, **THE CITY OF NEW YORK**.

9. At all times herein mentioned, Defendant **Mario Giordano** operated the aforementioned motor vehicle with the knowledge of the Defendant **THE CITY OF NEW YORK**.

10. At all times herein mentioned, Defendant **Mario Giordano** operated the aforementioned motor vehicle with the consent of the Defendant **THE CITY OF NEW YORK**.

11. At all times herein mentioned, Defendant **Mario Giordano** operated the aforementioned motor vehicle within the scope of his employment with the Defendant **THE CITY OF NEW YORK**.

12. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** managed the aforementioned said motor vehicle.

13. At all times herein mentioned, Defendant **Mario Giordano** managed the aforementioned motor vehicle.

14. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** maintained the aforementioned motor vehicle.

15. At all times herein mentioned, Defendant **Mario Giordano** maintained the aforementioned motor vehicle.

16. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** controlled the aforementioned said motor vehicle.

17. At all times herein mentioned, Defendant **Mario Giordano** controlled the aforementioned motor vehicle.

18. At all times herein mentioned, Defendant **Chance Deespina** was, and still is, a resident of the State of New York.

19. At all times herein mentioned, Defendant **Kevin Suarez** was, and still is, a resident of the State of New York.

20. At all times herein mentioned, Defendant **Kevin Suarez** was the owner of a 2003 Nissan motor vehicle bearing New York State license number GEW 1520.

21. At all times herein mentioned, Defendant **Chance Deespina** operated the aforementioned motor vehicle.

22. At all times herein mentioned, Defendant **Chance Deespina** operated the aforementioned motor vehicle with the permission of Defendant, **Kevin Suarez**.

23. At all times herein mentioned, Defendant **Chance Deespina** operated the aforementioned motor vehicle with the knowledge of Defendant, **Kevin Suarez**.

24. At all times herein mentioned, Defendant **Chance Deespina** operated the aforementioned motor vehicle with the consent of Defendant, **Kevin Suarez**.

25. At all times herein mentioned, Defendant **Chance Deespina** operated the aforementioned motor vehicle within the scope of his employment with Defendant, **Kevin Suarez**.

26. At all times herein mentioned, Defendant **Kevin Suarez** managed the aforementioned said motor vehicle.

27. At all times herein mentioned, Defendant **Chance Deespina** managed the aforementioned motor vehicle.

28. At all times herein mentioned, Defendant **Kevin Suarez** maintained the aforementioned motor vehicle.

29. At all times herein mentioned, Defendant **Chance Deespina** maintained the aforementioned motor vehicle.

30. At all times herein mentioned, Defendant **Kevin Suarez** controlled the aforementioned said motor vehicle.

31. At all times herein mentioned, Defendant **Chance Deespina** controlled the aforementioned motor vehicle.

32. At all times herein mentioned, Plaintiff **Leroy Atkins** operated a 2011 BMW motor vehicle bearing New York State license plate number GHJ7090.

33. At all times herein mentioned, Atlantic Avenue and Van Siclen Avenue, Kings County, NY, were public roadways and/or thoroughfares.

34. That on August 21, 2013, Defendant **Mario Giordano** was operating the aforesaid motor Ford vehicle owned by Defendant **THE CITY OF NEW YORK** at the above-mentioned location.

35. That on August 21, 2013, Defendant **Chance Deespina** was operating the aforesaid Nissan motor vehicle owned by Defendant **Kevin Suarez** at the above-mentioned location.

36. That on August 21, 2013, Plaintiff **Leroy Atkins** was operating the aforementioned BMW motor vehicle at the aforementioned location.

37. That on August 21, 2013, at the aforementioned location, the motor vehicle owned by Defendant **THE CITY OF NEW YORK** and operated by Defendant **Mario Giordano** came into contact with the motor vehicle operated by Defendant **Chance Deespina** and owned by Defendant **Kevin Suarez**. The motor vehicle operated by Defendant **Chance Deespina** and owned by Defendant **Kevin Suarez** came into contact with the motor vehicle operated by Plaintiff **Leroy Atkins**.

38. That as a result of the aforesaid collision, Plaintiff **Leroy Atkins** was injured.

39. That the aforesaid occurrence was caused wholly and solely by reason of the negligence of the Defendants without any fault or negligence on the part of the Plaintiff contributing thereto.

40. That Defendants, jointly and/or severally, were negligent, careless and reckless in the ownership, operation, management, maintenance, supervision, use and control of the aforesaid vehicle and the Defendants were otherwise negligent, careless and reckless.

41. That by reason of the foregoing, Plaintiff **Leroy Atkins** sustained severe and permanent personal injuries; and Plaintiff **Leroy Atkins** was otherwise damaged.

42. That Plaintiff **Leroy Atkins** sustained serious injuries as defined in Subdivision d of §5102 of the Insurance Law-Recodification.

43. That Plaintiff **Leroy Atkins** sustained serious injury and economic loss greater than basic economic loss as to satisfy the exceptions of §5104 of the Insurance Law.

44. That Plaintiff **Leroy Atkins** is not seeking to recover any damages for which Plaintiff has been reimbursed by no-fault insurance and/or for which no-fault insurance is obligated to reimburse Plaintiff. Plaintiff is only seeking to recover those damages not recoverable through no-fault insurance under the facts and circumstances in this action.

45. That this action falls within one or more of the exceptions set forth in CPLR §1602.

46. That by reason of the foregoing, Plaintiff **Leroy Atkins**, has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against all the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
August 21, 2014

Yours, etc.



Eitan Alexander Ogen
OGEN & SEDAGHATI, P.C.
Attorney for Plaintiff
202 East 35th Street
New York, New York 10016
(212) 344-3440
Our File No. 13-0058

ATTORNEY'S VERIFICATION

EITAN ALEXANDER OGEN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at OGEN & SEDAGHATI, P., attorneys of record for Plaintiff. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
August 21, 2014



EITAN ALEXANDER OGEN